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ATTORNEYS FOR PLAINTIFFS

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF ARIZONA**

**The Estate of Noe Mejia; Minor Child
R.M.; Minor Child A.M.;
Plaintiffs,**

v.

**Alejandro Myorkas, Secretary, United
States Department of Homeland
Security (in his official capacity);
Adam Valdez (in his individual
capacity); and John/Jane Does I-X (in
their individual capacities).**

Defendants.

**COMPLAINT FOR DAMAGES,
EQUITABLE RELIEF, and
INJUNCTIVE RELIEF**

1 NOW COMES the Estate of Noe Mejia and the minor children of Noe
2 Mejia to submit their Complaint for Damages, Equitable Relief, and Injunctive
3 Relief. They further submit the following:
4

5 THE PARTIES

6 I. The Plaintiffs

7 1. Miguel Gutierrez is the appointed administrator of the Estate of Noe Mejia.
8

9 2. Mr. Mejia's estate was established on September 21, 2023 in Santa Clara
10 County, California. *See, In re: Estate of Noe Mejia*, County Superior Court
11 Number 23PR195181.
12

13 3. Plaintiffs N.M and A.M. are Mr. Mejia's minor children.
14

15 4. These children currently live in California.
16

17 II. The Defendants

18 5. Alejandro Myorkas is the Secretary of the United States Department of
19 Homeland Security (hereinafter DHS).
20

21 6. DHS is an executive branch agency of the United States Government,
22 headquartered in Washington, District of Columbia.
23

24 7. DHS is sued, in part, pursuant to the Federal Tort Claims Act. ("FTCA").
25 Those claims are integrated into this Complaint.
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1 8. At all times relevant to this Complaint, Adam Valdez was a Border Patrol
2 officer, assigned to the United States Customs and Border Patrol station at
3 Sasabe, AZ.
4

5 9. "John/Jane Doe DHS Defendants" were employed by DHS and its
6 component agencies, including CBP and ICE, and their identities are at this time
7 unknown to Plaintiff.
8

9 10. Defendant Valdez and the Does' work responsibilities required, at least in
10 part, ensuring that apprehensions and processing of individuals who cross the
11 border were carried out lawfully and ensuring that all of their duties and
12 responsibilities were conducted and carried out in accordance with the law.
13

14 11. At all times relevant hereto, Adam Valdez and the Doe Defendants acted
15 within the scope and course of their employment.
16

17 12. At all times relevant hereto, Adam Valdez and the Doe Defendants acted
18 under the color of law.
19

20 **JURISDICTION AND VENUE**

21 13. This Court has original jurisdiction over this matter pursuant to 28 USC §
22 1331, because her claims arise under the Constitution, laws, or treaties of the
23 United States.
24

25 14. DHS is named as a defendant, pursuant to the Federal Tort Claims Act.
26
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1 15. The Plaintiffs filed their FTCA claims with the United States on or about
2 November 16, 2023.
3

4 16. Customs and Border Protection acknowledged receipt of the Notice on or
5 about December 21, 2023.
6

7 17. On or about April 2, 2024, the United States denied the Plaintiffs' FTCA
8 Claims.
9

10 18. As to the Individual DHS Defendants, this Court has subject matter
11 jurisdiction pursuant to 28 U.S.C. §§ 1331 and 1343(a), because Plaintiffs' claims
12 arise under the Fourth and Fifth Amendments to the United States Constitution,
13 *Bivens v. Six Unknown Named Agents of Federal Bureau of Narcotics*, 403 U.S. 388
14 (1971), and 42 U.S.C. §§ 1985 and 1986.
15
16

17 19. For state law tort claims raised in this Complaint, Plaintiffs rely upon the
18 law of the jurisdiction in which her injury occurred – Arizona. This Court has
19 jurisdiction over these claims, pursuant to 28 U.S.C. § 1367.
20

21 20. Plaintiffs seek declaratory and/or injunctive relief, compensatory and
22 punitive damages, attorney fees and costs, and such other relief that may be
23 available to her.
24

25 21. This Court has authority to grant declaratory relief pursuant to 28 U.S.C.
26 §§ 2201 and 2202, and Rule 57 of the Federal Rules of Civil Procedure.
27
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29

22. This Court has authority to grant injunctive relief in this action pursuant to 5 U.S.C. §§ 702, 706 and Rule 65 of the Federal Rules of Civil Procedure.

23. This Court has personal jurisdiction over the Defendants in this matter and the underlying acts of this complaint took place in the District of Arizona.

24. Venue in this district is proper under 42 U.S.C. § 1391, because, as described below, a substantial part of the acts or omissions giving rise to the Plaintiffs' claims took place in Arizona.

STATEMENT OF FACTS

I. CBP's Policies, Procedures, and Practices.

25. According to the Customs and Border Protection (CBP) use of force handbook, agents may not use deadly force simply because a subject is fleeing:

Deadly force shall not be used solely to prevent the escape of a fleeing subject. However, deadly force is authorized to prevent the escape of a fleeing subject where the law enforcement officer has reasonable belief that the subject poses a significant threat of death or serious harm, to law enforcement or others and such force is needed to prevent escape.¹

26. CBP Use of Force Handbook prohibits agents from firing at the driver of a moving vehicle, "DHS law enforcement officers are prohibited from discharging

¹ CBP Use of Force – Administrative Guidelines and Procedures Handbook: Law Enforcement Safety and Compliance Directorate Operations Support 4500-002B," January 2021, at 64, available at https://www.cbp.gov/sites/default/files/assets/documents/2021-Jul/cbp-use-of-force-admin-guide-procedure-handbook_4500-002B.pdf (last visited September 30, 2024).

1 firearms at the operator of a moving vehicle, vessel, aircraft, or any other
2 conveyance unless the deadly use of force against the operator is justified under
3 the standards articulated elsewhere in this policy.”²

5 27. DHS policy further states, “Before using deadly force under these
6 circumstances, the law enforcement officer must take into consideration the
7 hazards that may be posed to law enforcement and innocent bystanders by an
8 out-of-control conveyance.”³

11 28. CBP officers also are required to render aid for “any subject who has
12 visible or apparent injuries. . . .” “as soon as practicable following a use of force
13 and the end of any perceived public safety threat.”⁴

15 29. All Border Patrol agents are required to train and pass certification
16 training with their batons both in the academy and once every fiscal year.

18 30. Additionally, all agents are required to train in de-escalation tactics and
19 techniques.

21 31. In recent years, physical abuse of persons near the Mexican border by U.S.
22 Border Patrol agents has become common.

26 ² *Id.*

27 ³ *Id.*

28 ⁴ *Id.* at 61.

1 32. The Border Patrol consistently denies public access to basic information
2 about its operations, including whether agents responsible for abuse are
3 disciplined in any way, thus shielding the agency and individual agents from
4 public accountability for abusive policies and practices.
5

6
7 33. Even after many fatal shooting incidents involving Border Patrol agents,
8 the agency has refused to release the names of those involved.
9

10 34. Based on an extensive investigation, the Arizona Republic found that
11 between 2010 and 2012, there were 487 “use of force incidents” in the Border
12 Patrol’s Tucson Sector.⁵
13

14 35. Reports also found that, nationwide, Border Patrol agents caused fifteen
15 deaths between 2011 and 2012, alone – five of which occurred in the Tucson
16 Sector. Thirteen of these deaths were shootings.
17

18 36. Another source found that CBP agents killed 28 people between 2010 and
19 2014.
20

21 37. Between 2005 and 2014, Border Patrol agents caused 46 deaths nationwide,
22 according to media reports and data provided by the Government.
23
24
25
26
27

28 ⁵ See, Bob Ortega and Rob O’Dell, Force at the Border: Tucson Setor, Ariz.
29 Republic, December 16, 2023.

1 38. In response to continuing public interest and controversy surrounding
2 CBP's use of force policies and practices, and, in particular, to a letter sent by 16
3 members of Congress, CBP commissioned an external, independent review of its
4 use of force policies and practices from the Police Executive Research Forum
5 ("PERF"), a non-profit research organization comprised of experts on police
6 practices.⁶

7
8
9
10 39. PERF reviewed all deadly force events from January 2010 through October
11 2012, including 67 case files related to CBP officers' use of deadly force.

12
13 40. PERF provided CBP a report and recommendations, detailing significant
14 shortcomings in CBP use of force policies and practices, to include, but not be
15 limited to the following:

16
17 a) "It is not clear that CBP consistently and thoroughly reviews all use
18 of deadly force incidents." (Report at 4); and

19 b) Too many cases do not appear to meet the test of objective
20 reasonableness with regard to the use of deadly force (Report at 7).

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28 ⁶ See, Police Exec. Research Forum, U.S. Customs and Border Protection Use of
29 Force Review: Cases and Policies (2013).

1 41. In September 2013, a report by the Department of Homeland Security
2 Office of Inspector General noted that “many agents and officers do not
3 understand use of force and the extent to which they may or may not use force.”⁷

4
5 42. A report by the American Immigration Council in May 2014 reviewed 809
6 complaints of alleged abuse by Border Patrol agents between 2009 and 2012 and
7 found that “CBP officials rarely take action against the alleged perpetrators of
8 abuse.”⁸

9
10
11 43. The report noted that it was impossible to determine which cases had
12 merit based on the data provided by the government, but concluded that it was
13 “astonishing that, among those cases in which a formal decision was issued, 97
14 percent resulted in ‘No Action Taken.’”⁹

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21 ⁷ Department of Homeland Security, Office of Inspector General, *CBP Use of*
22 *Force Training and Actions to Address Use of Force Incidents* at 17 (2013), available at
23 [https://www.oig.dhs.gov/reports/2013-09/cbp-use-force-training-and-actions-](https://www.oig.dhs.gov/reports/2013-09/cbp-use-force-training-and-actions-address-use-force-incidents-redacted/oig13)
24 [address-use-force-incidents-redacted/oig13](https://www.oig.dhs.gov/reports/2013-09/cbp-use-force-training-and-actions-address-use-force-incidents-redacted/oig13) (last visited September 30, 2024).

25 ⁸ American Immigration Council, *No Action Taken: Lack of CBP Accountability*
26 *in Responding to Complaints of Abuse 3* (2014), available at
27 [https://www.americanimmigrationcouncil.org/research/no-action-taken-lack-](https://www.americanimmigrationcouncil.org/research/no-action-taken-lack-cbp-accountability-responding-complaints-abuse)
28 [cbp-accountability-responding-complaints-abuse](https://www.americanimmigrationcouncil.org/research/no-action-taken-lack-cbp-accountability-responding-complaints-abuse) (last visited September 30,
29 2024).

⁹ *Id.* at 1.

1 **II. Defendant Valdez, a CBP Officer, Shoots Noe Mejia at Point Blank**
2 **Range.**

3 44. Being present in the U.S. and undocumented is an administrative
4 immigration violation and not a dangerous or violent felony.
5

6 45. On March 14, 2023, the U.S. Border Patrol pursued a vehicle that agents
7 suspected of smuggling undocumented persons.
8

9 46. As noted in the [Border Patrol's press release](#), the agency claims that a
10 remote camera operator "observed multiple suspected undocumented migrants
11 load into a BMW sedan" near the Sasabe, Arizona port of entry at approximately
12 6:18 p.m.
13

14 47. Sixteen minutes later, two agents saw a BMW sedan and attempted to stop
15 it on State Route 286 near mile marker 12.
16

17 48. Seven minutes after initiating the pursuit, the driver stopped on a dirt road
18 and became stuck with heavy brush in front of him and Border Patrol vehicles
19 behind him.
20

21 49. Defendant Valdez, the lead agent in the pursuit, was wearing a body
22 camera.
23

24 50. When the pursuit came to a stop, Defendant Valdez, dressed in a green
25 Border Patrol uniform jumped from his service truck, put his gun to the driver's
26 head and pulled the trigger killing him instantly.
27
28
29

1 51. The video contains no evidence that suggests that Mejia intended to harm
2 anyone in the car or the agents.
3

4 52. At no time did Mejia turn his car towards agents and attempt to hit them.

5 53. At no time did Mejia try and hit the lead agent as he was being hit with
6 his baton.
7

8 57. The video evidence shows that the BMW was sandwiched in between the
9 brush and the agent's truck.
10

11 58. The Defendant Valdez is seen jumping from his truck, running up to the
12 BMW and using his collapsible steel baton to break both the back passenger's
13 window and the front driver's window.
14

15 59. After breaking the driver's window, Mr. Mejia accelerates in reverse as the
16 lead agent strikes him through the now broken window with the baton
17 repeatedly.
18

19 60. Defendant Valdez stands at the driver's window and is not in danger of
20 being run over.
21

22 61. Defendant Valdez then grabs Mr. Mejia's left forearm and hangs onto the
23 driver as the BMW is backing up.
24

25 62. Mr. Mejia's left hand is holding a black cell phone.
26

27 63. Defendant Valdez continues holding the Mejia's forearm and pulls on his
28 arm as if he is trying to pull Mejia through the window.
29

1 64. Mr. Mejia puts the BMW back into drive using his right hand and tries to
2 go forward.
3

4 65. Defendant Valdez pulls his service weapon and fires point blank at the
5 driver.
6

7 66. Mr. Mejia's car was stopped and sandwiched in between brush and agents'
8 vehicles.
9

10 67. It is not known if Defendant Valdez identified himself or was giving Mejia
11 orders because there is no audio until after Mr. Mejia is killed.
12

13 68. Defendant Valdez appears to immediately escalate the situation by using
14 his baton to break out the windows and even break the driver's door lock.
15

16 69. Mr. Mejia had presents a threat of "assaultive bodily harm" at this point,
17 yet Defendant Valdez responds with "defensive tactics" through baton blows to
18 the car.
19

20 70. On information and belief, the only training DHS agents receive
21 suggesting they break windows with their batons when approaching a suspected
22 migrant smuggling vehicle is if the people inside of the vehicle cannot get out.
23

24 71. Had Mr. Mejia's vehicle been on fire or crashed and people could not get
25 out, the lead agent would then have a justified reason to break the windows.
26

27 72. On information and belief, the tactic of breaking out someone's windows
28 to intimidate is not one that Border Patrol policy or training condones.
29

1 73. After breaking the Mejia's driver's window and receiving several blows
2 from the lead agent's baton, the BMW goes into reverse.
3

4 74. The lead agent is still standing at the driver's window and is not in danger
5 of being run over.
6

7 75. The lead agent then grabs the Mejia's left forearm and pulls it as the BMW
8 is backing up.
9

10 76. Mejia's left hand is holding a black cell phone.

11 77. At any point, Defendant Valdez can back away and hold the man at
12 gunpoint.
13

14 78. Instead, Defendant Valdez holds and pulls Mejia's forearm as Mejia puts
15 the BMW back into drive using his right hand and tries to go forward.
16

17 79. Defendant Valdez then pulls his service weapon and fires point blank at
18 Mr. Mejia, killing him.
19

20 80. Neither Defendant Valdez nor other agents' lives were in danger from
21 Mejia.
22

23 81. The BMW was not about to run over Defendant Valdez or the other agent
24 in the second vehicle.
25

26 82. There was, however, a passenger in the front seat and people sitting in the
27 back seat when the lead agent pointed his weapon into the car and pulled the
28 trigger.
29

1 83. Defendant Valdez could have killed or injured everyone else in the car.

2 84. Even if the camera operator saw these suspected undocumented migrants
3
4 cross the border illegally, which the report does not state they did, crossing the
5 border illegally does not rise to the level of use of force this agent used.
6

7 85. After the shooting, CBP agents rendered no care to Mr. Mejia for
8 approximately thirty minutes, claiming they had no gloves available.
9

10 86. The Pima County coroner determined Mr. Mejia's cause of death as
11 homicide, with the fatal injury a gunshot wound to the neck.
12

13 **III. CBP Publicly Releases the Body Cam Video of the Shooting.**

14 87. The Privacy Act, 5 U.S.C. 522a, prohibits any government agency from
15 disseminating any record kept on an individual, absent specific circumstances.
16

17 88. Public release of video depicting the murder of a civilian by federal law
18 enforcement is not one of the enumerated circumstances.
19

20 89. On April 13, 2023, the Claimants learned that United States CBP released
21 body camera footage of the vehicle pursuit and shooting of Mr. Mejia.
22

23 90. As of the filing of this lawsuit, this video remains publicly available at
24 [https://www.dvidshub.net/video/879371/use-force-incident-sasabe-arizona-](https://www.dvidshub.net/video/879371/use-force-incident-sasabe-arizona-march-14-2023)
25 [march-14-2023](https://www.dvidshub.net/video/879371/use-force-incident-sasabe-arizona-march-14-2023) (last visited September 30, 2024).
26

27 91. At no time did CBP give notice to the family that this footage was being
28 released to the media.
29

1 92. At no time did CBP seek or receive the consent of the Plaintiffs to release
2 this footage to the media.
3

4 93. The family is horrified and re-traumatized by the release of this footage
5 that shows in graphic detail a CBP officer shooting their loved one.
6

7 94. This nonconsensual release constitutes a separate injury to the Plaintiffs.
8

9 **PLAINTIFFS' CAUSES OF ACTION AGAINST DEFENDANTS**

10 **COUNT ONE** 11 **VIOLATIONS OF THE FIFTH AMENDMENT** 12 **(Defendant Valdez)**

13 95. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
14 herein.

15 96. At all relevant times, all Defendants were federal actors and were acting
16 under color of federal law.
17

18 97. At the time Defendant Valdez shot Mr. Mejia, Defendant Valdez was not
19 in danger of fatal or bodily harm from Mr. Mejia or anyone else.
20

21 98. In fatally shooting Mr. Mejia, Defendant Valdez acted intentionally,
22 maliciously, and used unreasonable and excessive force, with the intent to cause
23 harm to Mr. Mejia, without legal justification.
24

25 99. Defendant Valdez' actions were unnecessary to achieve any legitimate law
26 enforcement objective.
27
28
29

1 100. Defendant Valdez' actions were grossly excessive, deliberately indifferent,
2 and shocking to the conscience, in violation of the substantive due process
3 component of the Fifth Amendment.

4
5 101. Mr. Mejia had a bodily integrity and life interest under the Due Process
6 Clause.

7
8 102. Agent Valdez' killing of Mr. Mejia violated Mr. Mejia's children's
9 substantive right to association with their father under the Due Process Clause.¹⁰
10

11 **COUNT TWO**
12 **VIOLATIONS OF FOURTH AMENDMENT**
13 **(Excessive Force)**
14 **(Defendant Valdez)**

15 102. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
16 herein.

17 103. At all relevant times, all Defendants were federal actors and were acting
18 under color of federal law.

19 104. When Defendant Valdez fatally shot Mr. Mejia, he was not in danger or
20 fatal or bodily harm from Mr. Mejia or anyone else.
21

22 105. In fatally shooting Mr. Mejia, Defendant Valdez acted intentionally and
23 used unreasonable and excessive force with the purpose of causing harm to Mr.
24 Mejia, without legal justification.
25
26
27

28
29

¹⁰ *Ovando v. City of Los Angeles*, 92 F.Supp.2d 1011, 1019 (C.D. Cal. 2000).

1 106. Defendant Valdez' actions violated the Fourth Amendment's prohibition
2 against seizures with excessive and unreasonable force.
3

4 107. Mr. Mejia had a substantive bodily integrity and life interest under the
5 Due Process Clause.
6

7 108. Agent Valdez' killing of Mr. Mejia violated Mr. Mejia's children's
8 substantive right to association with their father under the Due Process Clause.¹¹
9

10 **COUNT THREE**
11 **VIOLATIONS OF FOURTH AMENDMENT**
12 **(FAILURE TO TAKE REASONABLE STEPS TO SECURE MEDICAL**
13 **CARE AND DELIBERATE INDIFFERENCE TO SERIOUS MEDICAL**
14 **NEEDS)**
15 **(Defendant Valdez and Doe Defendants)**

16 109. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
17 herein.
18

19 110. At all relevant times, all Defendants were federal actors and were acting
20 under color of federal law.
21

22 111. Failure to render medical aid after arrest is analyzed under the Fourth
23 Amendment.¹²
24
25
26

27 ¹¹ *Id.*
28

29 ¹² *Ostling v. City of Bainbridge Island*, 872 F.Supp.2d 1117, 1129 (W.D. Wash. 2012).

1 112. For at least thirty minutes, Defendant Valdez' and the Defendant Does'
2 failed to render any medical aid to Mr. Mejia after Defendant Valdez shot him at
3 point blank range in the neck.
4

5 113. This failure to render aid constitutes a deliberate indifference to Mr.
6 Mejia's serious medical needs.
7

8 114. This failure to render aid constitutes a separate violation of the Fourth
9 Amendment.
10

11 **COUNT FOUR**
12 **NEGLIGENCE**
13 **(Defendant Valdez and Doe Defendants)**

14 115. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
15 herein.
16

17 116. Here, the Defendants were negligent in two, distinct ways.

18 117. First, Defendant Valdez and Doe Defendants owed Plaintiffs a duty of
19 reasonable care not to use deadly force against Mr. Mejia in these circumstances.
20

21 118. Second, Defendants Valdez and Doe Defendants owed Plaintiffs a duty of
22 reasonable care to render or summon aid to Mr. Mejia, once Defendant Valdez
23 shot him.
24

25 119. In breach of those duties, those Defendant John Doe negligently and/or
26 recklessly caused Plaintiff serious physical harm and placed her at risk of
27
28
29

1 additional physical harm by negligently discharging a firearm at the vehicle in
2 which Plaintiff was a passenger.
3

4 120. As a result of Defendant Valdez' and Defendant Does' acts and omissions,
5 Plaintiffs suffered damages in an amount to be proven at trial, including but not
6 limited to medical bills, pain and suffering, and emotional distress.
7

8 **COUNT FIVE**
9 **NEGLIGENCE *PER SE***
10 **(Defendant Valdez and Doe Defendants)**

11 121. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
12 herein.
13

14 122. Defendant Valdez and Doe Defendants committed negligence *per se* in
15 two, distinct ways.
16

17 123. First, CBP's use of force policies and procedures are intended to protect the
18 public from CBP officers' use of unreasonable force.
19

20 124. Second, CBPs policies regarding rendering or summoning aid for those
21 injured by a use of force are intended to protect the public from further injury
22 from CBP officers after a use of force.
23

24 125. The violation of these policies and procedures, by shooting Mr. Mejia and
25 then rendering no aid, caused his death.
26

27 **COUNT SIX**
28 **AGGRAVATED NEGLIGENCE**
29 **(Defendant Valdez and Doe Defendants)**

1 126. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
2 herein.
3

4 127. Defendant Valdez and Doe Defendants committed aggravated negligence
5 in two, distinct ways.
6

7 128. First, Defendant Valdez and Doe Defendants, at all times relevant hereto,
8 knew or had reason to know that firing a weapon at a moving car would not
9 only create an unreasonable risk of bodily harm to those in the car, but also
10 involved a high probability that such harm would result.
11

12 129. Second, Defendant Valdez and Doe Defendants, at all times relevant
13 hereto, knew or had reason to know that failing to render aid to someone shot in
14 the neck would not only create an unreasonable risk of bodily harm to Mr. Mejia,
15 but also involved a high probability that such harm would result.
16

17 130. Despite the fact that the Defendant Valdez and Doe Defendants knew or
18 had reason to know their conduct would probably result in harm, they
19 nonetheless engaged in that conduct, which ultimately resulted in harm to
20 Plaintiffs.
21

22 131. A reasonable person in Defendant Valdez' and Doe Defendants' position
23 would have known or would have had reason to know that their actions created
24 an unreasonable risk of harm and the risk was so great that it was probable that
25 harm would result.
26
27
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1 132. As a result of Defendant Valdez' and Doe Defendants' wanton and
2 reckless acts and omissions, Plaintiffs suffered damages in an amount to be
3 proven at trial, including but not limited to pecuniary damages, pain and
4 suffering, and emotional distress.
5

6
7 **COUNT SEVEN**
8 **WRONGFUL DEATH**
9 **(Defendant Valdez and Doe Defendants)**

10 133. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
11 herein.

12 134. Defendant Valdez and Doe Defendants committed the tort of wrongful
13 death in two, distinct ways.
14

15 135. First, Defendant Valdez and Doe Defendants, at all times relevant hereto,
16 knew or had reason to know that firing a weapon at a moving car would not
17 only create an unreasonable risk of bodily harm to those in the car, but also
18 involved a high probability that such harm would result.
19

20 136. Second, Defendant Valdez and Doe Defendants, at all times relevant
21 hereto, knew or had reason to know that failing to render aid to someone shot in
22 the neck would not only create an unreasonable risk of bodily harm to Mr. Mejia,
23 but also involved a high probability that such harm would result.
24

25 137. Despite the fact that the Defendant Valdez and Doe Defendants knew or
26 had reason to know their conduct would probably result in harm, they
27
28
29

1 nonetheless engaged in that conduct, which ultimately resulted in harm to
2 Plaintiffs.
3

4 138. A reasonable person in Defendant Valdez' and Doe Defendants' position
5 would have known or would have had reason to know that their actions created
6 an unreasonable risk of harm and the risk was so great that it was probable that
7 harm would result.
8

9
10 139. As a result, Plaintiffs suffered the following damages:

11 a. The loss of love, affection, companionship, care, protection, and
12 guidance since the death and in the future;

13 b. The pain, grief, sorrow, anguish, stress, shock, and mental suffering
14 already experienced, and reasonably probable to be experienced in the
15 future;

16 c. The income and services that have already been lost as a result of the
17 death, and that are reasonably probable to be lost in the future;

18 d. The reasonable expenses of funeral and burial; and
19

20 e. The reasonable expenses of necessary medical care and services for
21 the injury that resulted in Mr. Mejia's death.

22 **COUNT EIGHT**
23 **VIOLATION OF THE PRIVACY ACT**
24 **5 U.S.C. 522**
(Defendant Myorkas and Doe Defendants)

25 140. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
26 herein.
27
28
29

1 141. The bodycam video of this incident constitutes "information" about an
2 individual under 5 U.S.C. § 522.
3

4 142. DHS and Doe Defendants released this video to the public without the
5 permission of the subject, in violation of 5 U.S.C. § 522(a)(b)
6

7 143. The publication of this video, which continues through the filing of this
8 complaint, constitutes a violation of the Privacy Act.
9

10 145. On information and belief, the release of this video has caused pecuniary
11 damage to the Plaintiffs.
12

13 146. The release of this video also is subject to declaratory and injunctive relief.
14

15 **COUNT NINE**
16 **NEGLIGENT SUPERVISION AND TRAINING OF EMPLOYEES**
17 **(Defendant Myorkas)**

18 147. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
19 herein.
20

21 148. DHS owed a duty of reasonable care to hire, retain, supervise, and train its
22 employees such that they do not create dangerous conditions for the general
23 public, including Plaintiffs.

24 149. DHS breached that duty when it failed to hire, retain, supervise, and train
25 its employees, as demonstrated by the conduct of Defendant Valdez and
26 Defendant Does, as described in this Complaint.
27
28
29

1 150. Additionally, as described above, DHS has been on notice since at least
2 2014 that its response and review of critical incidents are ineffective.

3
4 151. As the American Immigration Council noted in 2014, 97 percent of use of
5 force incidents resulted in “no action taken” and “CBP officials rarely take action
6 against the alleged perpetrators of abuse.”¹³

7
8 152. As a direct and proximate result of DHS’ breach, Plaintiff was injured and
9 suffered damages in an amount to be proven at trial including but not limited to
10 medical bills, pain and suffering, and emotional distress.

11
12 153. As discussed above DHS has been on notice since at least 2014 that its
13 review of critical incidents leads to little, if any, discipline of bad actors.

14
15 154. With little to no enforcement of DHS’ policies and procedures regarding
16 the use of deadly force, DHS offers no deterrent to illegal conduct, such as that
17 described in this Complaint.
18

19
20 **COUNT TEN**
21 **RESPONDEAT SUPERIOR**
22 **(Defendant Myorkas)**

23 155. Plaintiffs re-allege each and every paragraph, *supra*, as if fully alleged
24 herein.
25

26
27 ¹³ American Immigration Council, No Action Taken: Lack of CBP Accountability
28 In Responding To Complaints of Abuse, at 1 (2014).
29

1 156. On information and belief, at all times relevant hereto, Defendant Valdez
2 and Doe Defendants were acting in the course and scope of their employment
3 with DHS.
4

5 157. Defendant Valdez' and Does Defendants' conduct was in furtherance of
6 DHS' business and, at least, with the implicit consent of their employer.
7

8 158. Defendant Myorkas is therefore vicariously liable for the acts and
9 omissions of Defendant Valdez and Doe Defendants described in this complaint
10

11 159. The employees' acts were motivated at least in part by a purpose to serve
12 the employer.
13

14 PRAYER FOR RELIEF

15 WHEREFORE, Plaintiffs request:
16

- 17 1. Injunctive and declaratory relief declaring defendants' conduct
18 unconstitutional and barring such conduct in the future;
- 19 2. Compensatory and punitive damages;
- 20 3. Reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
21 and
22
- 23 4. Such other and further relief as the Court deems just.
24

25 WHEREFORE, Plaintiffs ask this Court to enter a Judgment in their favor.
26

27 RESPECTFULLY SUBMITTED on October 1, 2024.

28 s/Joy Bertrand

29 Joy Bertrand

Attorney for Plaintiff